

FIRST ENDORSEMENT

Chief Prosecutor, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, May 16, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2022-27311 against Police Officer Fidney Moise, Tax Registry No. 962625. The case was conferenced on March 7, 2024, before Assistant Deputy Commissioner of Trials Anne E. Stone, who approved a Command Discipline Schedule A with the negotiated penalty of a forfeiture of Five (5) vacation days. Charges and Specifications are dismissed for plea purposes.

Andre D. Applewhite

Chief Prosecutor

New York City Civilian Complaint Review Board

APPROVED

Edward A. Caban 1/5/2024

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2022-27311

BOOK & PAGE NO.
Page 1 of 2

PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, MOISE	FIRST FIDNEY	M.I.	COMMAND 104 PRECINCT
SHIELD NO. 20130	TAX REGISTRY NO. 962625	SOCIAL SECURITY NO.	DATE APPOINTED 10/11/2016	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Fidney MOISE, on or about May 17, 2021, at approximately 2350, while assigned to 104 PCT and on duty, inside of § 87(2)(b) Queens County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) living space, § 87(2)(b) in Queens, without sufficient legal authority.	DISMISSED	A - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 5.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Fidney MOISE, on or about May 17, 2021, at approximately 2350, while assigned to 104 PCT and on duty, inside of § 87(2)(b) Queens County, abused his authority as a member of the New York City Police Department, in that he searched § 87(2)(b) living space, § 87(2)(b) in Queens, without sufficient legal authority.	DISMISSED	
3 . Police Officer Fidney MOISE, on or about May 17, 2021, at approximately 2350, while assigned to 104 PCT and on duty, inside of § 87(2)(b) Queens County, abused his authority as a member of the	DISMISSED	

DC Brubio
FIRST DEPUTY COMMISSIONER

5/23/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)

Edward A. Caber
POLICE COMMISSIONER

7/15/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27311
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE POM	SURNAME, MOISE	FIRST FIDNEY	M.I.	COMMAND 104 PRECINCT
SHIELD NO. 20130	TAX REGISTRY NO. 962625	SOCIAL SECURITY NO.		DATE APPOINTED 10/11/2016
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				
SPECIFICATION		DISPOSITION		RECOMMENDED PENALTY PLEA [X] TRIAL []
New York City Police Department, in that he failed to obtain language interpretation services for § 87(2)(b) without sufficient legal authority.				

DC Bortone *5/23/24*
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Caban *7/15/24*
POLICE COMMISSIONER DATE